KOOTENAI NATIONAL FOREST

Lake Creek Campground

T. 26 N., R. 30 W.,
Sec. 5, S½SW¼SE¼;
Sec. 8, N½NW¼NE¼.
The areas described aggregate 40 acres.

Sylvanite Administrative Site

T. 34 N., R. 33 W., Unsurveyed.
Beginning at Corner No. 6 of H. E. S. No. 845 thence
S. 20°00' E. 11.75 chains,
S. 38°00' E. 25.90 chains,
S. 13°30' E. 4.50 chains,
S. 25°00' W. 13.50 chains,
S. 12° 00' E. 12.50 chains,
S. 86°00' W. 12.40 chains,
N. 15°00' W. 54.87 chains,
N. 47°00' E. 12.40 chains to the point of beginning.
The area described contains approximately 90 acres.

The total area described in this order is 3,261.61 acres.

This order shall be subject to existing withdrawals for other than national forest purposes so far as they affect any of the lands, and shall take precedence over, but not otherwise affect the existing reservation of the lands for national forest purposes.

ROGER ERNST,
Assistant Secretary of the Interior.

JULY 25, 1958.

[F. R. Doc. 58-5830; Filed, July 30, 1958; 8:45 a. m.]

[Public Land Order 1693]

[78919]

UTAH

POWER SITE RESTORATION NO. 545; PARTLY REVOKING EXECUTIVE ORDER OF JULY 2, 1910, WHICH CREATED POWER SITE RESERVE NO. 34

By virtue of the authority vested in the President by section 1 of the act of June 25, 1910 (36 Stat. 847; 43 U. S. C. 141) and pursuant to Executive Order No. 10355 of May 26, 1952, it is ordered as follows:

The Executive Order of July 2, 1910, creating Power Site Reserve No. 34, as construed by Interpretation No. 156 of October 10, 1930, is hereby revoked so far as it affects the following-described lands:

SALT LAKE MERIDIAN, UTAH

T. 26 S., R. 20 E.,
Sec. 36, W. ¾ of lot 4 and NE¼SE¼.

The areas described aggregate approximately 70 acres.

Upon this revocation, the grant made to the State of Utah by the act of July 16, 1894 (28 Stat. 107) or the act of January 25, 1927 (44 Stat. 1026; 43 U. S. C. 870), whichever is applicable, will attach to the lands, subject to any valid existing rights.

ROGER ERNST,
Assistant Secretary of the Interior.

JULY 25, 1958.

[F. R. Doc. 58-5831; Filed, July 30, 1958; 8:45 a. m.]

TITLE 47—TELECOMMUNICATION

Chapter I—Federal Communications Commission

[Rules Amdt. 1-4; FCC 58-731]

PART 1—PRACTICE AND PROCEDURE

USE OF CERTAIN FREQUENCIES BY STANDARD BROADCAST STATIONS

In the matter of amendment of § 1.351 of Commission rules and regulations for standard broadcast stations specifying the frequencies 940 kc and 1550 kc.

At a session of the Federal Communications Commission held at its offices in Washington, D. C., on the 28th day of July 1958;

The Commission having under consideration an amendment of § 1.351 of its rules and regulations in order to expedite action on applications for standard broadcast stations which have heretofore been placed in a deferred action status pending a final decision in Docket No. 8333 concerning daytime skywave;

It appearing, that as presently written § 1.351 of the rules requires that action be withheld on certain applications for new Class II standard broadcast stations or for changes in existing stations on all frequencies listed in paragraphs (a) and (b) of § 3.25 of the rules governing standard broadcast stations because such proposed operations might result in increased interference to Class I broadcast stations in the United States;

It further appearing, that two of the frequencies listed in § 3.25 (b) of the rules, i. e., 940 kc and 1550 kc, are not assigned to Class I–B stations in the United States and that the inclusion of these two frequencies in the provisions of § 1.351 is undesirable;

It further appearing, that the Commission is of the view that exempting the frequencies 940 kc and 1550 kc from the requirements of § 1.351 will be conducive to the orderly and expeditious dispatch of its functions and is, therefore, in the public interest;

It further appearing, that the amendments herein ordered are procedural in nature, and, therefore, compliance with the requirements of sections 4 (a) and (b) of the Administrative Procedure Act is not required;

It is ordered, That, pursuant to sections 4 (i) and (j) and 303 (r) of the Communications Act of 1934, as amended, § 1.351 of the Commission's rules and regulations is amended, effective September 10, 1958, as set forth below.

(Sec. 4, 48 Stat. 1066, as amended; 47 U. S. C. 154. Interprets or applies sec. 303, 48 Stat. 1082, as amended; 47 U. S. C. 303)

Released: July 28, 1958.

FEDERAL COMMUNICATIONS COMMISSION,
[SEAL] GORDON J. KENT,
Acting Secretary.

1. Section 1.351 is amended as follows: Insert the words "except 940 kc and 1550 kc" after words "any of the frequencies" wherever they appear in paragraphs (a), (b), (c), and (d) of § 1.351.

2. Section 1.351 as amended will read as follows:

§ 1.351 *Standard broadcast applications on which action will be withheld pending conclusion of the proceeding in Docket No. 8333.* Action will be withheld on the following types of applications:

(a) Applications proposing daytime or limited time assignments on any of the frequencies, except 940 kc and 1550 kc, specified in § 3.25 (a) and (b) of this chapter.

(b) Applications by existing daytime or limited time stations presently assigned to any of the frequencies, except 940 kc and 1550 kc, specified in § 3.25 (a) and (b) of this chapter, proposing:

(1) A change in operation resulting in an increase in radiation towards the normally protected contour of a United States Class I station on the channel; or

(2) A change in transmitter location resulting in a material reduction in the distance from that station to the normally protected contour of a United States Class I station on the channel.

(c) Applications for new stations, and those for changes in frequency assignment of existing stations, proposing unlimited time Class II assignments which would operate differently during the day and night in the continental United States on any of the frequencies, except 940 kc and 1550 kc, specified in § 3.25 (b) of this chapter, or in Alaska, Hawaii, Virgin Islands, and Puerto Rico on any of the frequencies, except 940 kc and 1550 kc, specified in § 3.25 (a) and (b) of this chapter.

(d) Applications for changes in existing stations other than frequency, proposing unlimited time Class II facilities which would operate differently during the day and night in the continental United States on any of the frequencies, except 940 kc and 1550 kc, specified in § 3.25 (b) of this chapter, or proposing unlimited Class II facilities in Alaska, Hawaii, Virgin Islands and Puerto Rico on any of the frequencies, except 940 kc and 1550 kc, specified in § 3.25 (a) and (b) of this chapter, where the resulting daytime and nighttime operations are different; and it is either

(1) Proposed to change daytime operation resulting in any increase in radiation towards the normally protected contour of a United States Class I station on the channel; or

(2) It is proposed to change transmitter location resulting in a material reduction in the distance from that station to the normally protected contour of a United States Class I station on the channel.

[F. R. Doc. 58-5856; Filed, July 30, 1958; 8:51 a. m.]

[Docket No. 12337; FCC 58-713]

[Rules Amdt. 3-118]

PART 3—RADIO BROADCAST SERVICES

TELEVISION BROADCAST STATIONS, LITTLE ROCK-PINE BLUFF, ARK.; TABLE OF ASSIGNMENTS

In the matter of amendment of § 3.606 *Table of assignments*, Television Broad-